UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK
- x
UNITED STATES OF AMERICA,

-against- (S7) 22-cr-0673 (LAK)

RYAN SALAME,

Defendant.
- x

ORDER

LEWIS A. KAPLAN, *District Judge.*

Defendant was convicted on his plea of guilty to one count of conspiracy to make unlawful political contributions and to defraud the Federal Election Commission and sentenced on May 29, 2024 principally to a term of imprisonment of 90 months. Although the offense and relevant conduct involved many tens of millions – indeed, arguably hundreds of millions – of dollars, the sentence reflected a very substantial downward variance from the Guideline range of 120 months, which was the sentence recommended by Probation. Moreover, although the relevant statutes contemplate that defendants such as this one be remanded to the custody of the Bureau of Prisons ("BOP") immediately upon imposition of a sentence of imprisonment, *see* 18 U.S.C. 3143(b), the Court granted this defendant's request for permission to self surrender to the BOP on August 29, 2024, thus affording him three months at liberty to put his affairs in order.

On June 29, 2024, defendant apparently was bitten by a dog. Nearly a month later, he so advised the Court and sought a postponement of his scheduled surrender until October 11, 2024 in order to allow him to pursue additional private medical treatment. The Court granted that request as well.

Most recently, the defendant *yesterday, October 9* – represented by new counsel – requested still another postponement of his surrender date, again to pursue further private medical treatment. This time he seeks a postponement until December 7.

The government opposes the request, writing in part:[1]

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[1] Dkt 519 (footnote omitted).

This Court granted a prior request by Salame to continue his self-surrender date by 45 days so that Salame would have time undergo what he described as "urgent and necessary medical treatment and surgery." (Dkt. 467). In that time, Salame appears to have substantially recovered. He attended a court conference on September 12, 2024, at which he appeared physically recovered and was more than capable of answering the Court's questions with no signs of drooling or slurred speech. He recently participated in a videotaped interview with Tucker Carlson, during which he similarly appears physically recovered and entirely unimpaired while answering questions. While Salame has submitted a doctor's letter in support of his request, this time the outlined medical treatment—which follows already-completed necessary medical treatment and surgery—seems largely cosmetic and nonurgent. The letter does not explain why the outlined procedures could not be performed after Salame's release, even if not his or his doctor's preferred timeline.

The Court is in substantial agreement with the paragraph quoted above on the basis, among others of its own observations of and interactions with the defendant during the court proceeding on September 12, 2024.. In addition, to whatever extent that additional medical treatment is genuinely necessary and cannot await the defendant's release, it can be provided by or under the auspices of the BOP.

Defendant already has benefitted from extremely generous postponements of the commencement of the term of imprisonment warranted by the serious nature of the crime he committed and the other relevant conduct. For the foregoing reasons, as well as the Court's concerns with the veracity of defendant's various prior statements alluded to in the government's opposition and therefore the veracity and *bona fides* of the present application, the Court is unpersuaded. The application to defer the date for surrender is denied. Defendant shall surrender no later than 2 p.m. on October 11, 2024 as previously scheduled.

SO ORDERED.

Dated: October 10, 2024

Lewis A. Kaplan
United States District Judge